

# The Hindu Inheritance (Removal Of Disabilities) Act, 1928

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The Hindu Inheritance (Removal Of Disabilities) Act, 1928

UNION OF INDIA

India

The Hindu Inheritance (Removal Of Disabilities) Act, 1928

Act 12 of 1928

Published in Gazette 12 on 20 September 1928

Assented to on 20 September 1928

Commenced on 20 September 1928

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The Hindu Inheritance (Removal Of Disabilities) Act, 1928

ACT NO.12 OF 1928

[20th September, 1928]

An Act to amend the Hindu Law relating to exclusion from inheritance of certain classes of heirs, and to remove certain doubts.

WHEREAS it is expedient to amend the Hindu Law relating to exclusion from existence of certain classes of heirs, and to remove certain doubts; It is hereby enacted as follows:

1.

Short title, extent and commencement. -

(1)

This Act may be called the Hindu Inheritance (Removal of Disabilities) Act, 1928.

(2)

It extends to the whole of India , except the State of Jammu and Kashmir.

(3)

It shall not apply to any person governed by the Dayabhaga School of Hindu Law.

2.

Persons not to be excluded from inheritance or rights in joint family property. -

Notwithstanding any rule of Hindu law or custom to the contrary, no person governed by the Hindu law, other than a person who is and has been from birth a lunatic or idiot, shall be excluded from any right or share in joint family property by reason only of any disease deformity or physical or mental defect.

3.

Saving and exception. -

Nothing contained in this Act shall affect any right which has accrued or any liability which has been incurred before the commencement thereof, or shall be deemed to confer upon any person any right in respect of any religious office or service or of the management of any religious or charitable trust which he would not have had if this Act had not been passed.

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